

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUWT034717: MATHEW WERBER vs UNIVERSAL PROTECTION SERVICE,
LP, et al.**

07/28/2026 in Department 43

**DEFENDANT/PETITIONER UNIVERSAL PROTECTION SERVICE, LPS PETITION
TO CONFIRM FINAL ARBITRATION AWARD OF ARBITRATOR LUIS CARDENAS**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant/Petitioner Universal Protection Service, LP's Petition to Confirm Final Arbitration Award of Arbitrator Luis Cardenas

Tentative Ruling: The unopposed Petition to Confirm Final Arbitration Award of Arbitrator Luis Cardenas is GRANTED on the conditions stated below.

Defendant Universal Protection Service, LP has established that the matter was submitted to binding arbitration by stipulation of the parties on April 15, 2025. Plaintiff filed a demand for binding arbitration the following day, on April 16, 2025. Thereafter, Defendant filed a Motion to Dismiss the Arbitration Proceeding due to Plaintiff's failure to participate. The arbitrator granted the motion on June 6, 2026, deeming the Defendant to be the prevailing party and dismissing Plaintiff's claims with prejudice.

Defendant now brings this motion requesting confirmation of the arbitrator's award and both a judgment and a dismissal with prejudice. The Court finds that Defendant has stated proper grounds for confirmation of the arbitrator's award. The Court is not aware of any authority however, under which it could grant the request to enter both a judgment and a dismissal, since either would dispose of the case in its entirety.

In conformity with the arbitrator's award, Defendant is deemed the prevailing party, and the Court orders the action dismissed with prejudice.

Moving party is ordered to serve notice of the Court's ruling.